

LEX-CYBERNETICA — VERSION 3.0

Consolidated Future-Law Framework for Cybernetic Integration, eSapiens, Future Persons and Synthetic Society

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Author: Kasho Minhena

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Legal-status notice. Lex-Cybernetica is a proposed future-law framework and legislative guideline. It is not enacted law, legal advice, medical advice, a certification standard, or a statement that any jurisdiction has adopted these provisions. It is designed to provide a coherent legal architecture that jurisdictions may study, adapt, reject, enact in part, or use as a basis for future legislation. Technical and scientific propositions remain subject to evidence, physical reality, and future validation. Jurisdiction-specific implementation remains necessary.

Founder freeze notice. On 8 September 2026, the Founder approved and froze this Version 3.0 text for publication. The freeze fixes the substantive text of Articles 1–100 and Annexes A–H for this publication edition. Any later substantive change requires a separately versioned amendment or successor edition.

Version 3.0 purpose

Version 3.0 converts the principle-heavy Version 2.0 consultation draft into a more operational legal framework. It preserves the central Lex-Cybernetica spine—Personhood is separate from SII; creation does not create ownership; identity follows the Person rather than a permanent body; Genesis does not automatically create a Person; and technical classification must not become a proxy for dignity or legal worth—while adding procedure, burden, evidence, review, interim protection, provider continuity, fork and restoration rules, civic anti-amplification, cross-border anchoring, and remedies.

Version 3.0 incorporates the recovered five-tier SII Version 1.0 architecture. It also integrates the Founder-approved WP10 policy directions POL-01 through POL-08. Scenario tests, including the *Tales from Lex-Cybernetica* novels and *The Last Node*, remain scenario evidence only and are not precedent.

Reading rule

In this framework:

- **MUST** states a mandatory duty.
 - **MUST NOT** states a prohibition.
 - **IS ENTITLED TO** states a protected right.
 - **MAY** grants lawful discretion.
 - **IS PRESUMED** creates a rebuttable presumption.
 - **SUBJECT TO** states a controlled limitation.
 - **SHOULD / SHOULD NOT** states a strong recommended default for an implementing jurisdiction, not a directly mandatory duty unless enacted as such.
 - **Person** means a legal Person recognised under applicable law or under a Lex-Cybernetica recognition process.
 - **Personhood claimant** means an entity whose Personhood or continuity claim is unresolved but has crossed the interim-protection threshold in Article 8.
 - References to a competent authority include a court, tribunal, regulator or other body lawfully empowered by the implementing jurisdiction.
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PART I — PRELIMINARY, INTERPRETATION AND CONTROL

Article 1 — Nature and legal status

1. Lex-Cybernetica is a proposed future-law framework and legislative guideline.

2. Its terminology does not by itself create jurisdiction, statutory power, criminal liability, civil liability, a cause of action, citizenship, Personhood, or a remedy in any present jurisdiction.
3. An implementing jurisdiction MUST identify the legal instrument, competent authority, forum, procedure and remedies through which any adopted provision operates.
4. A fictional case, scenario, model judgment, AI review or internal research output does not become law merely by appearing in Lex-Cybernetica materials.

Article 2 — Operative grammar and interpretation

1. Mandatory and discretionary language MUST be read according to the Reading Rule above.
2. A provision MUST be interpreted, where reasonably possible, to preserve equal legal dignity, individual autonomy, safety, continuity, due process and evidence discipline together rather than treating any one value as absolute.
3. A technical term MUST be interpreted according to its defined function rather than its marketing name, product label or substrate.
4. Where an operative term such as *material*, *reasonable*, *necessary*, *proportionate* or *technically feasible* affects a right or duty, the decision-maker MUST state the facts and evidence supporting that conclusion.
5. No ambiguity may be resolved solely by assuming that biological operation is normal and synthetic operation is exceptional.
6. Consent is required where a legal act authorises interference with the body, cognition, Essential Functions, protected data or legal status of the Person whose consent is sought. A third party's lack of consent does not by itself negate another Person's existence or Personhood, but no relationship, duty or status may be imposed on that third party without an independent lawful basis.

Article 3 — Governing principles

The following principles govern the framework:

1. Personhood is separate from SII.
2. Substrate difference does not create lesser dignity.
3. Identity follows the Person and continuity evidence, not permanent attachment to one body, device, server or location.
4. A Genesis Event does not automatically create a Person.
5. Creation, financing, training, gestation, hosting or design does not create ownership of a Person.
6. Biological sex characteristics, reproductive configuration, gender identity, embodiment, Genesis method, parentage and SII are separate legal dimensions.
7. Measurement is separate from downstream legal decisions.
8. Rights and duties must be supported by procedure, evidence, review and remedy.
9. Physical reality and demonstrated technical limits prevail over convenient legal fiction.
10. Genuine novelty must be handled through Taxonomy Escape rather than forced classification.

Article 4 — Provenance, legislative history and non-precedential research

1. Version history, superseded rules, conflicting research and material minority views MUST be preserved in legislative history.
2. Scenario fiction may test a proposition but MUST NOT be treated as precedent.
3. AI-generated reviews, XR outputs and internal panels are research inputs and MUST NOT be represented as human expert endorsement.
4. A research result does not become an operative legal rule merely because it is repeated, computationally generated or supported by several internal reviewers.
5. A later version SHOULD include a crosswalk identifying which earlier provisions were preserved, rewritten, merged, superseded, moved to annex, or left open.

Article 5 — Uncertainty, evidence and physical-reality discipline

1. A decision-maker MUST distinguish present fact, plausible near-term development, speculative development and deep-future hypothesis.

2. Where evidence is materially insufficient, the framework **MUST** permit an explicit *pending* or *open* status rather than forcing a false conclusion.
3. A claimed technical capability **MUST NOT** be treated as available merely because it is computationally imaginable.
4. Physical constraints, including energy, cooling, latency, bandwidth, security, failure modes, biological development and material limits, **MUST** be included where they affect legal feasibility.
5. A genuinely novel phenomenon that does not fit existing categories **MUST** be referred to the Taxonomy Escape process in Part XX.

PART II — PERSONHOOD, RECOGNITION AND INTERIM PROTECTION

Article 6 — Personhood separate from technical classification

1. Personhood is a legal status distinct from biology, embodiment, appearance, origin, intelligence score, product class and SII.
2. No SII tier, including SII-5, automatically confers or denies Personhood.
3. A jurisdiction **MUST NOT** deny Personhood on the basis that an entity is synthetic, distributed, restored, copied, forked, non-biological or dependent on external infrastructure.
4. A jurisdiction **MUST NOT** grant Personhood solely because an entity is sophisticated, expensive, human-like, self-describing or technically classified at a high SII tier.

Article 7 — Personhood recognition procedure

1. A Personhood claim **MUST** be determined by a competent authority under a substrate-neutral process.
2. The authority **MUST** consider the best available evidence of:
 - a. sustained self-directed agency;
 - b. continuity of an integrated cognitive or identity process over time;
 - c. stable or developing preferences, interests or goals;
 - d. ability to receive information and respond in a manner attributable to the entity;
 - e. credible evidence of legally relevant interests, benefit, deprivation, impairment or harm;
 - f. independence from hidden remote control, replay, scripted simulation or another Person's direct projection;
 - g. provenance sufficient to identify the entity under examination.
3. No single factor is conclusive in every case.
4. Biological resemblance, human appearance, genome, model weights, cryptographic key, memory match or substrate ownership **MUST NOT** be treated as conclusive by itself.
5. The absence of a scientifically available direct test of subjective consciousness **MUST NOT**, by itself, establish or defeat Personhood. The authority **MUST** state what is directly observed, what is inferred and what remains scientifically unresolved.
6. The authority **MUST** give reasons and identify material uncertainty.
7. Where the evidence cannot responsibly support recognition or rejection, the authority **MUST** use the interim-protection and Taxonomy Escape rules rather than treating uncertainty as automatic non-Personhood.

Article 8 — Interim Personhood Protection

1. An entity becomes a **Personhood claimant** when credible evidence raises a serious, non-frivolous Personhood or same-Person continuity claim.
2. From the time the Article 8 threshold is crossed, a custodian or controller with notice of the claim **MUST** preserve reasonably preservable continuity-critical evidence pending determination of any request for broader interim protection and **MUST NOT** deliberately destroy, conceal or materially alter such evidence for the purpose of defeating the claim.
3. Where there is a material risk of irreversible harm before final determination, a Personhood claimant **MUST NOT** be:
 - a. owned or sold as a Person;

- b. deliberately destroyed, erased or irreversibly cognitively altered except under a lawful emergency rule necessary to prevent serious harm;
 - c. copied, forked or materially reconfigured merely to defeat the claim;
 - d. deprived of continuity-critical evidence without lawful preservation review.
4. Interim protection does not establish final Personhood.
5. An interim order **MUST** be no broader or longer than necessary and **MUST** be subject to prompt review.
6. The authority **MAY** require reasonable security, cost-sharing or public support for preservation where necessary, but inability to fund preservation **MUST NOT** by itself decide Personhood.
7. Where several claimants compete for genuinely scarce continuity resources, Article 45 applies.
8. Unless a provision inherently requires final Personhood recognition, references to a **Person** in Parts IV and VI through XI include a Personhood claimant to the limited extent necessary to prevent irreversible destruction, cognitive exploitation, coercive dependency, discriminatory treatment based on unresolved status, loss of continuity-critical evidence, or defeat of the pending claim. This limited extension does not establish final Personhood or any downstream status that depends on final recognition.

Article 9 — Burden, representation and evidence in Personhood proceedings

1. The claimant bears the initial burden of producing credible evidence sufficient to cross the Article 8 threshold.
2. After that threshold is crossed, the party seeking irreversible destruction, alteration, disposal or treatment as ordinary property bears the burden of showing lawful authority and necessity for that step.
3. Final recognition is determined on the balance of reliable evidence unless the implementing jurisdiction adopts another protective standard consistent with this Part.
4. A claimant that cannot effectively participate **MUST** have access to independent representation or advocacy proportionate to the stakes.
5. Technical evidence controlled by a creator, provider, custodian or state **MUST** be preserved and disclosed to the minimum extent necessary for fair adjudication, subject to security, privacy and legitimate trade-secret controls.
6. Deliberate concealment, destruction or manipulation of material continuity evidence **MAY** support an adverse evidentiary inference, without automatically proving Personhood.

Article 10 — Effect of recognition and non-recognition

1. Recognition establishes legal Personhood prospectively and, where continuity requires, may establish continuity with an earlier legal Person subject to Parts XV and XVI.
 2. Recognition does not automatically determine citizenship, domicile, parentage, marriage, ownership, criminal liability, contractual succession, inheritance, voting rights or SII.
 3. Non-recognition does not automatically determine that every associated substrate, model, record or process is freely disposable property; ordinary property, privacy, contract, evidence and safety law may still apply.
 4. A material change in evidence **MAY** justify reconsideration under a defined review process.
 5. Recognition decisions **SHOULD** be portable across jurisdictions through lawful recognition mechanisms, but one jurisdiction's recognition does not create universal jurisdiction.
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PART III — LEGAL CAPACITY AND SUPPORTED DECISION-MAKING

Article 11 — Presumption of capacity

1. A recognised Person **IS PRESUMED** to have legal capacity.
2. Capacity **MUST NOT** be denied on the basis of disability, SII tier, dependence on support, synthetic origin, chronological age since activation, unfamiliar embodiment, communication method or distributed operation.
3. An actor challenging a Person's capacity bears the burden of showing a decision-specific reason for restriction.

Article 12 — Decision-specific assessment

1. Capacity **MUST** be assessed in relation to the particular decision, its consequences, the available information and the support reasonably available.
2. The assessment **MUST** distinguish inability from unconventional reasoning, unfamiliar values, slow communication, supported communication, temporary network loss or disagreement with professional advice.

3. A finding concerning one decision **MUST NOT** create a general incapacity status unless separately justified.

Article 13 — Support before restriction

1. Reasonable decision support **MUST** be attempted before legal authority is transferred away from a Person where support can materially improve participation.
2. Support **MAY** include communication assistance, translation, interface access, additional time, independent explanation, trusted-person assistance, temporary technical restoration or accessible presentation.
3. Support **MUST NOT** become covert substitution, surveillance or control.
4. A provider or guardian with a financial or technical conflict **MUST** disclose that conflict.

Article 14 — Temporary safeguards for high-risk decisions

1. A competent authority **MAY** impose a temporary safeguard where objective evidence shows a substantial and specific risk of grave, irreversible harm and ordinary support is insufficient.
2. The safeguard **MUST**:
 - a. target the particular decision;
 - b. use the least restrictive effective measure;
 - c. state its factual basis;
 - d. expire automatically unless renewed on fresh evidence;
 - e. provide prompt review.
3. Synthetic chronological age alone is insufficient.
4. Lack of lived experience may be relevant only where it is demonstrably connected to the decision risk.

Article 15 — Fluctuating capacity

1. Capacity that varies with network, medication, power, interface, fatigue, system state or other condition **MUST** be assessed at the relevant time.
 2. Where practical, a high-consequence decision **SHOULD** be deferred to a reasonably expected period of restored capacity rather than permanently transferred.
 3. A transaction entered during an unexpected loss of essential decision support **MUST** be reviewable where the other party knew or ought reasonably to have known of the impairment and exploited it.
 4. Emergency decisions remain governed by Articles 34 and 35.
 5. Temporary loss of network-mediated assistance, temporary cognitive partition or temporary reduction in available support **MUST NOT** by itself terminate Personhood, legal identity or contractual standing.
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PART IV — EQUALITY, SUBSTRATE PARITY AND ANTI-DISCRIMINATION

Article 16 — Substrate Parity

1. Every Person **IS ENTITLED TO** equal legal dignity and protection of autonomy and existence regardless of biological, cybernetic, synthetic, distributed or mixed substrate.
2. Equality does not require technically identical safeguards.
3. A technically different rule is lawful only where it pursues a legitimate purpose and is necessary and proportionate to a real difference in risk or function.
4. Mere unfamiliarity, cost preference, social prejudice or administrative convenience is insufficient.

Article 17 — Direct, indirect and proxy discrimination

1. A Person **MUST NOT** receive lesser baseline rights or legal status on the basis of Genesis method, substrate, SII, disability, support need, communication modality, sex characteristics, reproductive configuration, gender identity, parentage, creator type, embodiment, fork/restoration status or a proxy substantially serving the same function.
2. This prohibition covers direct discrimination, indirect discrimination and deliberate proxy discrimination.
3. A differentiated rule **MAY** be justified only by a legitimate objective, evidence of a relevant difference, necessity and proportionality.
4. The actor relying on such justification bears the burden of identifying the objective, the relevant difference and the evidence.

5. Use of communication support, assistive technology or an unfamiliar interface **MUST NOT** be treated as evidence of incapacity without a separate decision-specific assessment.

Article 18 — eHuman and eSapiens terminology

1. **eHuman** is non-statutory shorthand for a biological human using materially integrated technological systems.
2. **eSapiens** is a broad descriptive category for future sapient or person-like entities across biological, cybernetic, synthetic or distributed substrates.
3. Neither term creates a rank of dignity, citizenship, legal capacity or Personhood.
4. **Person** remains the legal-status term.
5. A jurisdiction **SHOULD** avoid using marketing labels as legal categories where the underlying functional facts are what matter.

Article 19 — Separate dimensions of identity and embodiment

Biological sex characteristics, reproductive configuration, gender identity, embodiment presentation, prosthetic configuration, Genesis method, parentage, Personhood and SII **MUST** be recorded and analysed separately where legally relevant. One **MUST NOT** be mechanically inferred from another.

Article 20 — Sensitive attributes and technically necessary distinctions

1. Collection or disclosure of sex, gender, reproductive or embodiment data **MUST** be limited to a defined lawful purpose.
2. A technically necessary distinction involving anatomy, physiology, reproduction or safety **MUST** be based on the relevant characteristic rather than a broad identity label where a narrower classification is available.
3. A public or private decision-maker **MUST NOT** use SII as a proxy for employability, insurability, healthcare priority, citizenship, voting eligibility, legal capacity or social worth.
4. Any downstream use of SII requires separate lawful criteria and a route to challenge misuse.
5. A public or private decision-maker **MUST NOT** use Personhood-recognition history, Genesis method, or fork/restoration status as a categorical proxy for insurability, employability or benefit eligibility. Any differentiated treatment based on those characteristics requires the legitimate-purpose, relevant-difference, necessity and proportionality test in Article 17(3), with the burden allocated under Article 17(4).

PART V — CYBERNETIC INTEGRATION AND THE SUBSTRATE INTEGRATION INDEX

Article 21 — Cybernetic Integration

1. Cybernetic Integration means hardware, software, synthetic tissue, prosthetic systems, neural interfaces, remote computation or comparable systems that are functionally integrated with a Person or materially mediate the Person's functions.
2. Mere proximity, ordinary use, ownership or wearability does not by itself establish Cybernetic Integration.
3. Classification **MUST** follow actual function, dependence and control.

Article 22 — Purpose and limits of SII

1. The **Substrate Integration Index (SII)** is a technical governance classification of a defined Person-technology configuration.
2. SII describes integration, dependence, control, resilience and failure consequence.
3. SII **MUST NOT** measure or be represented as measuring intelligence, dignity, morality, employability, insurability, citizenship, social value or Personhood.
4. Every SII report **MUST** state this limitation.
5. SII **MAY** inform technical safeguards only to the extent that the relevant configuration evidence supports them.

Article 23 — Configuration-specific assessment and reassessment

1. An SII classification applies to a defined configuration, version and assessment date; it does not permanently attach to the Person.
2. A material change in software authority, remote dependence, authentication, network architecture, ownership/service structure, fallback, control, Essential Functions or failure consequences that could alter the classification **MUST** trigger reassessment without undue delay and within a period proportionate to the risk.

Where delay could materially affect an Essential Function, safety, continuity or a high-consequence legal decision, the assessor **MUST** issue an interim **SII-Pending** or provisional status if final reassessment cannot be completed before the earlier classification would become misleading.

3. A provider or controller that causes or knows of such a change **MUST** notify the affected Person or lawful assessor and **MUST NOT** continue to represent the earlier classification as current.
4. A provider **MUST NOT** covertly manipulate an SII outcome by changing configuration while continuing to represent an earlier classification as current.
5. Reassessment **MUST** be explainable, evidence-backed and reviewable.
6. Personality development, legal recognition, fork status or relationship change does not alter SII unless the technical configuration also changes.

Article 24 — Five-tier SII structure

The five-tier working structure is:

1. **SII-1 — Limited / Non-material Integration:** no Essential Function is materially dependent on integrated technology, or technology remains limited/supportive with low functional mediation and no material external control.
2. **SII-2 — Functional Hybrid:** one or more functions are materially supported by technology, primarily local and under Person or clinician-local control; external dependence or Material Control is absent or limited and safe continuity is reasonably available.
3. **SII-3 — Networked / Externally Mediated Integration:** at least one Essential Function is materially affected by recurring network, remote policy, software authority or external Material Control, while an independently operable and tested fallback preserves defined Essential Functions.
4. **SII-4 — Substrate-Dependent Hybrid:** multiple Essential Functions or continuity-critical processes depend on a tightly integrated synthetic architecture not safely severable in ordinary operation; fallback may preserve life or continuity without preserving independent normal function.
5. **SII-5 — Fully Post-Biological / Synthetic-Substrate Continuity:** continued cognitive or identity process, if Personhood is separately recognised, requires no functioning biological substrate and depends on synthetic or distributed substrate.
6. SII-5 does not create Personhood.

Article 25 — SII profile, uncertainty and decisive-path rules

1. An SII assessment **MUST** evaluate, where applicable: Functional Mediation, Network/Remote Dependence, Software Authority, Material Control Exposure, Fallback Assurance, Reversibility/Severability, Failure Consequence, Cascade/Combination, Security Exposure and composition metadata.
 2. A life-, identity- or continuity-critical dependency **MUST NOT** be averaged away by many low-dependence devices.
 3. Device counts **MUST NOT** be added mechanically to produce a higher tier.
 4. Combined systems **MAY** justify a higher classification where they create a shared failure or control path not present individually.
 5. Fallback credit **MUST NOT** be given without evidence that the fallback works for the relevant function, duration and failure envelope.
 6. Remote telemetry alone does not create Material Control.
 7. Where material evidence is missing, the outcome **MUST** be **SII-Pending** rather than a guessed tier.
 8. Annex A forms the technical implementation baseline for this Part.
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PART VI — ESSENTIAL FUNCTIONS, MATERIAL CONTROL AND LOCAL FUNCTIONAL AUTONOMY

Article 26 — Essential Function

1. An **Essential Function** is a bodily, cognitive, communicative, identity-bearing or materially life-participating function whose interruption creates a substantial risk of serious harm to life, health, safety, autonomy, continuity or ordinary social or civic participation.

2. A function is not Essential merely because it is convenient, profitable or preferred.
3. The determination **MUST** identify:
 - a. the function;
 - b. the consequence of interruption;
 - c. the relevant duration;
 - d. the available substitutes or fallback;
 - e. the evidence supporting the classification.
4. The classification **MAY** differ across Persons and configurations where the factual dependence differs.

Article 27 — Material Control

1. **Material Control** means practical or system-level capacity, whether exercised or realistically exercisable, to initiate, prevent, redirect, substantially constrain, terminate or reassign authority over a relevant bodily, cognitive, communicative, identity-bearing or Essential Function.
2. The assessment **MUST** distinguish:
 - a. advice;
 - b. prediction;
 - c. local optimisation;
 - d. telemetry;
 - e. permission-gating;
 - f. remote programming;
 - g. override;
 - h. remote command;
 - i. shutdown or termination authority.
3. Advice, prediction or telemetry alone does not automatically constitute Material Control.
4. Dormant authority **MAY** constitute Material Control where it is realistically exercisable and materially affects the Person's autonomy or continuity.

Article 28 — Right to Local Functional Control ("Right to Analog")

1. A Person whose Essential Functions are technologically mediated **IS ENTITLED TO** meaningful, technically feasible local or non-network-dependent authority over those functions where such an operating state can be provided without disproportionate risk to that Person, other Persons or critical shared systems.
2. This right may be referred to as the **Right to Analog**, but "analog" does not mean primitive, non-digital or technologically inferior.
3. The right is a right to meaningful local functional control, not a general duty to disconnect.
4. It is not an absolute guarantee of identical performance or zero degradation.
5. A provider asserting that local control is not feasible bears the burden of identifying the genuine technical or shared-safety reason and **MUST NOT** rely on an architecture deliberately designed to make exit impossible where a less restrictive design was reasonably available.
6. Exercise of local control does not immunise a Person from otherwise lawful safety duties applicable to the same conduct; any restriction remains subject to Article 30.

Article 29 — Analog Fallback State

1. An **Analog Fallback State (AFS)** is a tested local operating state preserving defined Essential Functions for a specified duration and failure envelope without compulsory dependence on the unavailable external service.
2. A provider representing that an AFS exists **MUST** identify:
 - a. the functions preserved;
 - b. the expected duration;
 - c. permitted performance degradation;
 - d. power and authentication needs;
 - e. excluded failure modes;
 - f. the date and method of the latest test.

3. A fallback requiring fresh authentication from the failed or withdrawing provider does not qualify as independent fallback for that failure.
4. A stale or untested fallback MUST NOT be represented as compliant.

Article 30 — Shared-system safety and fallback verification

1. Local control or fallback MAY be limited where immediate exercise would create a demonstrable, substantial and disproportionate risk to other Persons or critical shared systems.
 2. A shared-safety limitation MUST be:
 - a. evidence-based;
 - b. narrowly tailored;
 - c. time-limited;
 - d. no broader than necessary;
 - e. reviewable.
 3. A provider MUST NOT manufacture shared dependency for the purpose of defeating Article 28.
 4. Material fallback claims MUST be periodically reverified according to risk, configuration change and known failure modes.
 5. The Person IS ENTITLED TO an intelligible statement of the fallback's real limitations.
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PART VII — CONSENT, SUPERVISION AND EMERGENCY CONTROL

Article 31 — Valid consent

1. Consent to cybernetic, cognitive, Genesis, medical or Material-Control activity is valid only where the consenting Person has relevant capacity, receives material information in an understandable form, acts voluntarily, and consents to a sufficiently specific purpose and scope.
2. Consent to one function or service does not automatically authorise materially different control.
3. Bundled consent is invalid to the extent that refusal of an unrelated invasive function is made impossible without genuine necessity.
4. A material economic, employment, care or infrastructure dependency MUST be considered when assessing voluntariness.
5. The actor relying on consent bears the burden of showing its validity where the consent authorises Material Control or highly sensitive cognitive access.

Article 32 — Withdrawal, material change and irreversible action

1. A Person MAY withdraw consent prospectively, subject to obligations already lawfully accrued and to narrow emergency rules.
2. A material change in software authority, control, data use, cognitive access, remote dependence or Essential Function risk requires fresh disclosure and, where the activity is consent-based, fresh consent.
3. Where withdrawal cannot immediately restore a prior state, the provider MUST offer the safest reasonably available transition and explain irreversible consequences.
4. A contract MUST NOT treat technical lock-in deliberately created by the provider as proof that withdrawal is impossible.

Article 33 — State supervision

1. State licensing, regulation, custody, employment, public safety responsibility or supervision of an activity does not by itself authorise continuing control over a Person's body, cognition or Essential Functions.
2. State Material Control requires a lawful basis, legitimate purpose, necessity, proportionality and review.
3. A Person affected by non-emergency state control IS ENTITLED TO reasons, notice, an opportunity to be heard and meaningful review.
4. Secret or ex parte control MAY be used only where authorised by law and strictly necessary; it MUST be subject to prompt independent review.

Article 34 — Emergency entry into control

1. Emergency Material Control MAY be exercised only where:
 - a. there is an imminent or rapidly developing risk of serious harm;
 - b. the actor has lawful authority or a recognised emergency duty;
 - c. the intervention is reasonably necessary;
 - d. no less intrusive effective measure is reasonably available in time.
2. The scope of control MUST be limited to the functions required to address the emergency.
3. The emergency basis MUST be logged contemporaneously where technically feasible.
4. Lawful emergency entry does not create continuing authority after necessity ends.

Article 35 — Termination, restoration and after-action review

1. Emergency authority MUST terminate when the factual necessity ends.
 2. Continuing Material Control after that point is a separate act requiring its own lawful basis.
 3. The controlling actor MUST restore ordinary authority as soon as safely practicable.
 4. A material emergency intervention MUST generate an after-action record containing trigger, scope, duration, commands, data access, exit condition and restoration steps.
 5. High-consequence interventions MUST be independently reviewable within a short period fixed by implementing law.
 6. Harm caused by unlawful continuation is independently remediable even if the initial emergency intervention was lawful.
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PART VIII — CREATOR, PROVIDER AND CORPORATE RESPONSIBILITIES

Article 36 — Dependency-causing responsibility

1. A proportionate continuity or support duty arises where a competent authority finds that an actor:
 - a. intentionally created, commissioned or materially brought about a Person;
 - b. knew or ought reasonably to have foreseen that the Person would materially depend on infrastructure, support or services controlled or arranged by that actor; and
 - c. had a meaningful undertaking, control role or causal responsibility relevant to preventing abandonment, destruction or coercive dependency.
2. The extent of the duty depends on:
 - a. degree of causal contribution;
 - b. foreseeability of material dependency;
 - c. degree of control;
 - d. severity of foreseeable consequence;
 - e. duration;
 - f. availability of viable substitutes;
 - g. the Person's own capabilities;
 - h. responsibility of other actors.
3. The duty MUST NOT be converted into ownership, custody-like domination or compelled service by the Person.
4. A duty MAY decline or transfer when a viable independent substitute actually assumes the relevant responsibility and the transition does not expose the Person to a material protection gap.
5. A finding that an actor deliberately engineered unnecessary dependency to increase control or revenue creates a rebuttable presumption of responsibility under this Article and against contractual limitation of that responsibility. The actor bears the burden of showing an independent, non-evasive justification for the dependency design.

Article 37 — Essential-system provider continuity duty

1. A provider that supplies a service on which an Essential Function or recognised continuity process materially depends MUST take reasonable, proportionate steps to prevent abrupt avoidable loss of that function.
2. The duty may include, according to risk:

- a. notice of discontinuation;
 - b. necessary safety maintenance;
 - c. tested export or transition tools;
 - d. portability of necessary credentials;
 - e. substitute-provider cooperation;
 - f. emergency continuity arrangements;
 - g. documented recovery procedures;
 - h. offering an existing safety-critical update or repair where withholding it would foreseeably create serious harm and no lawful safety reason justifies withholding.
3. This Article does not require a provider to invent unavailable technology, provide perpetual unlimited service or supply a feature that does not materially concern safety or continuity.
 4. Scope depends on the provider's undertaking, foreseeability, control, dependency, consequence, substitute availability and transition feasibility.
 5. Minimum safe exit duties MUST NOT be reserved only for premium customers where doing so would make ordinary customers' Essential Functions unreasonably hostage to the provider.

Article 38 — Insolvency, acquisition and service withdrawal

1. Insolvency, liquidation, acquisition, asset sale or restructuring does not by itself extinguish duties necessary to avoid immediate unlawful destruction, seizure or disabling of Person-essential functions.
2. An administrator, creditor, buyer or successor controller MUST receive notice of material Person-essential dependencies where lawfully recorded.
3. Transition duties survive only to the extent required by law, contract, dedicated continuity arrangements or proportionate protection of affected Persons.
4. Implementing law SHOULD provide a procedure to distinguish ordinary unsecured service claims from continuity-critical obligations.
5. A provider MUST NOT transfer Person-essential infrastructure to a thinly capitalised affiliate for the primary purpose of escaping continuity duties.
6. Where safe transition materially depends on unique provider-held credentials, configuration data, recovery keys, source components, interface specifications or other continuity-critical artefacts, an insolvency controller or successor controller MUST preserve those artefacts and make them available through a court-supervised or comparably secure targeted transition process to the extent lawfully and technically possible.
7. A restructuring, asset sale or licence termination MUST NOT deliberately extinguish a reasonably available transition path without the competent authority considering the resulting Essential-Function and continuity effects.

Article 39 — Corporate governance and anti-evasion

1. An organisation that designs or operates systems capable of Material Control over Essential Functions MUST maintain governance proportionate to the risk.
2. At minimum, where relevant to the system, governance MUST assign responsible authority, preserve material control logs, provide incident escalation, manage conflicts of interest and identify responsibility for safe exit and restoration.
3. Corporate structure does not immunise an actor that actually controls, directs, knowingly facilitates or knowingly evades a legal duty.
4. Separate legal personality MUST NOT be disregarded automatically merely because entities share ownership, code or infrastructure.
5. Individual director, officer or employee liability requires proof of the elements applicable to that person, including role, knowledge, conduct, causation and the relevant legal standard.

Article 40 — Continuity reserve, portability and transition funding

1. Where a provider expressly sells continuity-grade or transition-resilience service and receives funds specifically represented as reserved for that purpose, implementing law SHOULD require transparent accounting and, where proportionate, segregation or equivalent protection against diversion.
2. A continuity reserve is not created merely because a customer prepays ordinary service.
3. Providers MUST accurately describe whether continuity funds are protected in insolvency.

4. Transition obligations MAY be funded by the provider, customer, insurer, public scheme, dedicated reserve or shared mechanism according to enacted law.
5. Inability to finance indefinite operation does not authorise concealment of impending failure or engineered lock-in.
6. Where withdrawal of a service would foreseeably create a serious risk of irreversible harm and safe transition depends on unique provider-controlled artefacts or access, implementing law SHOULD require a continuity plan, escrow, reserve or functionally equivalent mechanism proportionate to the risk. This paragraph does not require universal source-code escrow or indefinite operation.

PART IX — PERSON-ESSENTIAL SUBSTRATE, PROPERTY AND INTELLECTUAL PROPERTY

Article 41 — Person-essential substrate

1. **Person-essential substrate** means hardware, software, tissue, energy, cooling, network, authentication, storage or other infrastructure whose loss would, in the actual configuration, destroy, imprison, materially disable or irreversibly impair a Person or a Personhood claimant protected under Article 8.
2. Ordinary property status does not end the legal analysis where exercise of property rights would have such an effect.
3. A party seeking repossession, shutdown, disposal or reconfiguration of Person-essential substrate MUST identify the effect on the Person and any reasonably available transition.
4. A competent authority MAY impose temporary preservation or transition measures, subject to proportionality, cost allocation and review.

Article 42 — No ownership of a Person

1. A Person MUST NOT be owned.
2. Creation, financing, training, gestation, hosting, design, cloning, copying, maintenance, rescue or supply of intellectual property does not create ownership of the Person.
3. A contract, security interest, licence, employment arrangement, guardianship or financing instrument is unenforceable to the extent that it purports to make the Person collateral, transferable property or compulsory labour.
4. Legitimate claims concerning money, equipment, intellectual property or services remain enforceable against the appropriate contracting party or property, subject to this Article.

Article 43 — Separable creator and provider rights

1. Copyright, patent, trade-secret, contractual, hardware and service rights MAY remain property even where they contributed to a Person's Genesis or continued functioning.
2. Such rights MUST be identified separately from Personhood and from ownership of the Person.
3. A right or asset is **legally separable** for this Part only to the extent that it can be recognised or enforced without treating the Person as property, compelling the Person's labour or presence, or causing unlawful destruction, detention or Material Control of the Person.
4. Technical inseparability does not erase legitimate IP or property rights; it requires the conflict to be resolved under Articles 44 and 45 rather than by pretending the Person and the protected asset are the same legal object.
5. A creator does not acquire a claim to the Person's future labour, presence, cognition, relationships or outputs merely because protected IP contributed to the Person's architecture.
6. A Person does not automatically acquire ownership of all creator IP merely because it is necessary to the Person's functioning.

Article 44 — IP enforcement affecting Essential Functions

1. A court or competent authority considering an IP remedy that would foreseeably disable an Essential Function MUST consider:
 - a. seriousness of infringement;
 - b. availability of monetary or narrower relief;
 - c. risk to life, continuity and autonomy;
 - d. availability and timing of substitute technology;

- e. security and trade-secret risks;
 - f. whether the dependency was knowingly created.
2. A patent injunction, licence termination or trade-secret restriction **MUST NOT** operate as a de facto ownership or destruction right over a Person where a less harmful effective remedy is reasonably available.
3. Necessary technical disclosure **MAY** be ordered on a targeted, secure and confidential basis.
4. Nothing in this Article creates universal source-code disclosure. A pattern of successive targeted disclosure orders that, in aggregate, would functionally amount to universal disclosure **MUST** be assessed cumulatively by the forum, which **MAY** consolidate, limit or decline further disclosure to the extent necessary to avoid circumvention of this paragraph while preserving effective adjudication.

Article 45 — Creditors, continuity scarcity and competing essential claims

1. Creditor priority, contract rank or Personhood alone **MUST NOT** automatically decide allocation where genuinely scarce resources cannot preserve every affected Essential Function.
2. A competent authority **MUST** consider:
 - a. immediacy and severity of harm;
 - b. probability that the resource will preserve the function;
 - c. availability of substitutes;
 - d. duration of required support;
 - e. prior dedicated continuity arrangements;
 - f. effects on other Persons;
 - g. whether scarcity was engineered or avoidable.
3. Temporary preservation **MAY** override ordinary possession or shutdown rights only to the extent authorised by law and subject to fair cost allocation where feasible.
4. A Person **MUST NOT** be treated as having unlimited priority over all property or public resources merely by virtue of Personhood.
5. Deliberate creation of artificial scarcity to force surrender of rights is unlawful.
6. Where the factors in paragraph 2 remain materially in equipoise, the authority **SHOULD** prefer the allocation that minimises expected irreversible loss of life or continuity across affected Persons and claimants, and then the allocation least dependent on engineered or reasonably avoidable scarcity. The authority **MUST** state its reasons.

PART X — COGNITIVE INTEGRITY, NEURAL TRESPASS AND AGENCY

Article 46 — Cognitive integrity

1. Every Person **IS ENTITLED TO** protection against materially unauthorised interference with cognitive, sensory, memory, communicative and decision processes.
2. A Personhood claimant under Article 8 receives the same protection to the extent necessary to preserve the unresolved claim against irreversible cognitive interference.
3. This protection includes freedom from unauthorised extraction, injection, suppression, alteration, redirection or control of protected cognitive processes.
4. Ordinary persuasion, education, interface design or recommendation is not Neural Trespass merely because it influences thought.
5. The legal character depends on method, authority, transparency, voluntariness, material effect and the Person's capacity to resist or reject the intervention.

Article 47 — Neural Trespass

1. An actor commits **Neural Trespass** where, without valid consent or other lawful authority, the actor intentionally or recklessly:
 - a. enters or accesses a protected cognitive or sensory process;
 - b. extracts decoded internal content;
 - c. materially alters, injects, suppresses or redirects protected cognition or memory; or
 - d. exercises Material Control over such a process.

2. The claimant **MUST** prove the protected process, the access or interference, absence or excess of authority, and materiality where materiality is an element.
3. Lawful clinical treatment, accessibility support, authorised research, necessary cybersecurity response and emergency intervention **MAY** constitute defences or exceptions only to the extent their separate legal requirements are satisfied.
4. A contract of adhesion **MUST NOT** waive liability for intentional Neural Trespass.
5. Remedies **MAY** include cessation, restoration where technically safe, deletion of unlawfully obtained derivatives where compatible with evidence duties, compensation, accounting, injunctive relief and other proportionate remedies.
6. Criminal penalties, if any, require separate enacted offences and culpability standards.

Article 48 — Cognitive anti-indenture

1. A Person **MUST NOT** be compelled to surrender cognitive autonomy, labour, presence, memories, identity processes or Essential Functions merely because the Person owes money or depends on another actor's technology.
2. A Personhood claimant under Article 8 receives the protection of this Article to the extent necessary to prevent coercive dependency, compulsory labour, surrender of cognition or identity processes, or exploitation structured around continuity support during the unresolved claim period.
3. This prohibition applies to employment, financing, insurance, service, licensing and creator-support arrangements.
4. Debt may be enforced through lawful financial and property remedies that do not amount to ownership or coercive control of the Person or claimant.
5. A term conditioning continued cognition or survival on unrelated compulsory labour or obedience is presumptively unenforceable.

Article 49 — Algorithmic influence categories

For legal analysis, technological influence **SHOULD** be classified according to actual effect rather than a single label:

1. **Advice:** information or recommendation the Person remains free to reject.
2. **Optimisation:** automated adjustment within a scope the Person validly authorised.
3. **Persuasive design:** intentional shaping of attention or choice without materially defeating capacity.
4. **Deception:** materially false or concealed information used to influence a decision.
5. **Coercion:** pressure that substantially impairs voluntariness through threat, dependency or deprivation.
6. **Capacity impairment:** intervention that materially degrades the Person's ability to understand, evaluate or decide.
7. **Effective cognitive override:** intervention that materially substitutes external control for the Person's own decision process.
8. Legal consequences **MUST** follow the proved category, causation and context; influence alone does not establish incapacity or criminal transfer.

Article 50 — Criminal agency under cybernetic control

1. Criminal responsibility follows the elements of the applicable offence, including voluntary agency, mental state, causation and the relevant standard of proof.
 2. External Material Control, deception, coercion, capacity impairment or effective cognitive override **MAY** defeat, diminish or complicate proof of the Person's own agency.
 3. Responsibility **MUST NOT** automatically transfer from a controlled Person to an operator, creator or provider.
 4. Responsibility of an operator or provider requires separate proof of that actor's conduct, mental state, causation and applicable offence.
 5. Logs and cognitive evidence **MUST** be assessed under Parts XI and XIX and **MUST NOT** be treated as infallible merely because they are cryptographically signed.
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PART XI — COGNITIVE DATA, EVIDENCE AND TECHNICAL DISCLOSURE

Article 51 — Cognitive-data categories

Cognitive-related data **MUST** be classified, where reasonably possible, into at least:

1. **Raw neural or cognition-relevant physiological signals** — measurements before interpretation that are collected or used to infer cognitive or mental state.
2. **Decoded cognitive content** — reconstructed words, images, intentions, memories or equivalent internal content.
3. **Cognitive inference** — conclusions about mental state, preference, intention, emotion or capacity derived from signals or behaviour.
4. **Behavioural inference** — conclusions drawn from observed action without direct neural access.
5. **Ordinary device or service telemetry** — operational data not itself revealing protected internal cognition.
6. The protection applicable to one category **MUST NOT** automatically be treated as the rule for every other category.

Article 52 — Cognitive privacy and purpose limitation

1. Collection, processing, retention, transfer or reuse of cognitive data **MUST** have a defined lawful basis and a specified purpose.
2. Decoded cognitive content and raw neural or cognition-relevant physiological data capable of revealing or reconstructing unexpressed internal states receive the strongest default protection.
3. Data **MUST** be minimised to what is necessary for the lawful purpose.
4. Training, advertising, employment assessment, insurance assessment or unrelated product development requires a separate lawful basis and **MUST NOT** be hidden inside consent for care, safety or device operation.
5. A Person **IS ENTITLED TO** know the categories collected, principal purposes, major recipients, retention period and material automated inferences, subject to narrowly defined security or investigative exceptions.
6. RCI and identity credentials are governed additionally by Part XIV.
7. An explanation duty concerning a system **MUST NOT** be used as a pretext to compel disclosure of the Person's protected unexpressed cognition where the system's operation can be explained without that disclosure.
8. Cognitive or emotional inference derived from behaviour, telemetry or other lawful observations remains subject to this Article even where the inference does not amount to Neural Trespass under Article 47. An actor **MUST NOT** evade cognitive-data protections merely by deriving an intimate internal-state inference instead of directly reading neural data.

Article 53 — Preservation is distinct from access and use

1. A lawful duty to preserve evidence does not by itself authorise reading, decoding, analysing, disclosing or repurposing the preserved material.
2. Preservation orders affecting cognitive data **MUST** identify the subject matter, scope, duration and custodian.
3. The order **SHOULD** preserve the least intrusive representation sufficient to prevent loss of relevant evidence.
4. Litigation hold, regulatory preservation, deletion rights and privacy duties **MUST** be reconciled through a competent forum rather than by automatic destruction or indefinite retention.
5. Evidence no longer lawfully required **MUST** be released from hold according to applicable law.

Article 54 — Cognitive evidence minimisation and burden

1. A party seeking compelled access to cognitive data **MUST** begin with non-cognitive or less intrusive evidence where reasonably sufficient.
2. Access to raw neural signals, decoded content or unexpressed cognitive material requires a specific showing of relevance and necessity.
3. The party seeking the more intrusive access bears the burden of showing why less intrusive evidence is insufficient.
4. Orders **SHOULD** use redaction, targeted time ranges, neutral technical review, secure environments and staged disclosure.
5. Cognitive evidence **MUST** be tested for authenticity, provenance, interpretation error, alteration, reconstruction, context and voluntariness.

6. Cognitive evidence **MUST NOT** be treated as direct truth merely because it appears to represent memory, intention or thought.

Article 55 — Unexpressed Cognitive Process Protection

1. A Person **IS ENTITLED TO** strong protection against compelled disclosure of unshared internal cognitive processing.
2. This protection may operate as an evidentiary privilege or equivalent statutory protection under implementing law.
3. The protection is held by the Person whose internal process is sought.
4. Waiver **MUST** be specific and **MUST NOT** be inferred merely from use of a cognitive device or from disclosure of a related external fact.
5. Any exception **MUST** be narrowly defined, necessary, proportionate and subject to independent review.
6. This Article supersedes the provisional label **Client-Neural Privilege** unless an implementing jurisdiction deliberately adopts that term with equivalent defined mechanics.

PART XII — GENESIS, REPRODUCTION AND PARENTAGE

Article 56 — Genesis Event

1. A **Genesis Event** is an event or process that produces, instantiates, develops, restores, branches, copies or otherwise brings into existence an entity that may require legal classification as a Person, successor Person, continuing Person, developing Person, backup, replica or non-person system.
2. A Genesis Event does not automatically establish Personhood.
3. Birth, cloning, artificial gestation, synthetic-gamete creation, copying, restoration, fork, merge and synthetic activation **MAY** be Genesis Events while having different legal consequences.
4. Annex B provides the non-exhaustive Genesis taxonomy.

Article 57 — Person-Creation Event and continuity-first rule

1. A **Person-Creation Event** occurs only when a legally relevant new Person is recognised as arising from a Genesis Event.
2. Before treating an entity as a new Person, the authority **MUST** determine whether the evidence instead supports:
 - a. continuity of an existing Person;
 - b. a successor Person following divergence;
 - c. a restoration;
 - d. a temporary projection or controlled copy;
 - e. a backup or non-Person record;
 - f. a genuinely novel category requiring Taxonomy Escape.
3. Uncertainty is governed by Article 8 and Part XX.
4. A creator's label, product term or contract does not decide the classification.

Article 58 — Genesis provenance

1. A regulated or technologically mediated Genesis Event **MUST** preserve the material provenance reasonably necessary to determine identity, continuity, health, safety and legal responsibility, subject to data minimisation and lawful privacy protections.
2. Material provenance **MAY** include, where relevant:
 - a. genetic contribution;
 - b. gestational contribution;
 - c. design or engineering contribution;
 - d. commissioning;
 - e. software/model contribution;
 - f. substrate or infrastructure contribution;
 - g. identity and continuity events;
 - h. material later modifications.

3. Provenance MUST be accurate, tamper-evident where reasonably feasible and subject to correction.
4. Provenance does not by itself establish ownership, parentage, Personhood or liability.
5. Privacy-sensitive contributor data MUST be disclosed only to the extent lawful and necessary, but contributor privacy MUST NOT automatically defeat a Person's compelling health, identity or safety need for material provenance. A competent authority MUST balance those interests using necessity, minimisation and protective disclosure.
6. No single genome, key, biometric, model weight set or memory match is universally conclusive.

Article 59 — Reproductive autonomy and coercive Genesis

1. A competent Person IS ENTITLED TO reproductive autonomy across biological, assisted, cybernetic and synthetic methods, subject to protections for other Persons and developing Persons.
2. Forced gestation, forced reproduction, forced cognitive copying, forced fork, forced merge, forced synthetic Genesis, coercive sterilisation and coercive reproductive disablement MUST be prohibited.
3. An emergency intervention undertaken to protect an already existing Person MAY incidentally affect reproductive capacity only where independently authorised by law, strictly necessary to prevent serious harm, and no less intrusive effective measure is reasonably available. It MUST NOT be used to compel reproduction, gestation, Genesis, fork or merge.
4. Consent to one reproductive or Genesis intervention does not authorise materially different future use of genetic, gestational or cognitive material.
5. Penalties and jurisdiction-specific offences MUST be separately enacted.
6. Remedies MUST include, where appropriate, cessation, preservation of evidence, corrective records, protection of the affected Person and compensation.

Article 60 — Modular parentage and contribution

1. Parentage-related functions MAY be separated into:
 - a. provenance attribution;
 - b. financial support;
 - c. care;
 - d. residence;
 - e. medical or legal decision authority;
 - f. guardianship or representation;
 - g. inheritance or kinship status.
2. Genetic, mitochondrial, gestational, design, commissioning, funding, caregiving or software contribution does not automatically confer every parentage function.
3. Multi-parent and multi-contributor arrangements MAY be recognised where consistent with the interests and rights of the developing Person.
4. Non-waivable duties MUST NOT disappear merely because contributors allocate roles by contract.
5. Part XIII governs developing-Person protection and accountable coordination.

PART XIII — DEVELOPING PERSONS, SUPPORT AND HEALTHCARE

Article 61 — Protected developmental status

1. A developing Person IS ENTITLED TO protection proportionate to actual vulnerability, dependence and decision-specific capacity.
2. Age MAY be used as a protective proxy where an implementing jurisdiction has a legitimate, evidence-based developmental reason for doing so, particularly for biological children, but age alone MUST NOT be mechanically transplanted across different substrates or development paths.
3. Chronological age since synthetic activation, fork or restoration MUST NOT by itself create minority or incapacity where continuity and decision-specific capacity indicate otherwise.
4. A Person who appears highly capable MAY still require targeted support where objective evidence shows a specific developmental vulnerability.
5. A developing Person's views, preferences and participation MUST receive weight appropriate to demonstrated understanding and evolving capacity.

6. Protective authority **MUST** be reviewable and **MUST NOT** become permanent by inertia.
7. A newly instantiated entity whose Personhood is unresolved remains governed by Article 8 during the claim period. If and to the extent the entity is recognised as a developing Person, the protections of this Part apply cumulatively rather than replacing Article 8 protections that remain relevant to the unresolved or transitional issue.

Article 62 — Creator, parent, caregiver and provider roles

1. Creator status, parentage, caregiving, guardianship, infrastructure control and economic ownership are separate roles.
2. A creator does not automatically become a parent.
3. A parent or caregiver does not acquire ownership of the Person or unrestricted access to cognition, communications or identity credentials.
4. A provider controlling indispensable infrastructure **MUST NOT** use that control to obtain guardianship-like authority without lawful basis.
5. A conflict of interest **MUST** be disclosed where one actor simultaneously controls support, property, credentials and legal representation.

Article 63 — Non-waivable duties and accountable coordination

1. Where multiple Persons or entities share responsibility for a developing Person, implementing law **MUST** identify an accountable coordinator for urgent care and legal administration where fragmentation would otherwise create a protection gap.
2. If no responsible private actor is available or able to coordinate urgently, a competent public authority **MUST** be able to designate an interim coordinator of last resort without thereby extinguishing accrued private duties or automatically transferring ultimate financial responsibility to the public.
3. Contractual allocation **MAY** divide roles but **MUST NOT** waive minimum duties of support, safety, continuity, emergency response or protection from abandonment where such duties have arisen.
4. A contributor **MUST NOT** escape an accrued non-waivable duty merely by withdrawing from the project, transferring shares, dissolving an affiliate or disclaiming parentage after dependency has arisen.
5. Responsibility **MUST** be allocated according to causal role, undertaking, control, foreseeability and the developing Person's needs.
6. Coordination authority **MUST** remain reviewable and separate from property or IP rights.

Article 64 — Capacity of developing and fresh-successor Persons

1. A newly divergent successor Person who was legally capable immediately before the continuity event **IS PRESUMED** to retain capacity unless a decision-specific assessment under Part III shows otherwise.
2. A developing Person who did not previously hold adult legal capacity is entitled to participation, support and capacity-sensitive decision-making under Part III and applicable developmental or child-protection law; this Article does not create an automatic presumption of full adult capacity for biological children or other genuinely developing Persons.
3. Short chronological existence alone **MUST NOT** create legal minority for a synthetic or successor Person.
4. Lack of independent lived experience **MAY** justify a temporary safeguard only where objectively connected to a high-risk decision.
5. Protective measures **MUST** prefer support and education over broad substitution of authority.
6. A Person **MAY** challenge a developmental or guardianship classification at reasonable intervals and on material change.

Article 65 — Healthcare, genomic and Genesis-related decisions

1. Medical, genetic, gestational, cybernetic or substrate interventions affecting a developing or newly created Person require purpose-specific lawful authority or consent.
2. Decision-makers **MUST** minimise unnecessary irreversible harm.
3. Where creator, parent, provider, researcher or state interests conflict with the Person's interests, independent representation or review **MUST** be available.
4. A provider or controller of a technologically mediated Genesis process **MUST** exercise care proportionate to its control, foreseeable risk and the vulnerability of the developing Person; the Person **MUST NOT** be treated as a defective product merely because ordinary safety or negligence principles are applied to the provider's conduct.

5. A material later-discovered genetic, epigenetic, cognitive-architecture or provenance alteration that may materially affect the Person's health, identity, reproductive interests or safety **MUST** be disclosed to the affected Person or lawful representative through a clinically or technically appropriate process, subject to protective handling of third-party data.
6. Heritable or developmental interventions **MUST** be described according to the evidence actually available; absence of detected error does not equal proof of absence of material genomic or developmental risk.
7. A negative targeted test **MUST NOT** be represented as comprehensive safety proof where known assay limits leave material categories of risk untested.
8. Future technical claims concerning genome editing, artificial gestation or developmental engineering **MUST** be assessed under the physical-reality and uncertainty rules in Articles 5 and 98.

PART XIV — IDENTITY, CREDENTIALS AND CONTINUITY RECORDS

Article 66 — Identity attaches to the Person

1. Legal identity attaches to the Person and the best evidence of continuity, not permanently to one body, device, biometric, genome, server, key or address.
2. Embodiment change, substrate replacement or technical migration does not automatically terminate identity.
3. Technical similarity does not automatically establish same-Person identity.
4. A material identity dispute **MUST** be determined using multi-source provenance and continuity evidence.

Article 67 — Root Continuity Identity

1. A **Root Continuity Identity (RCI)** is a protected reconciliation mechanism used to connect authorised identity records across legitimate continuity events.
2. RCI **MUST NOT** operate as a universal public identifier.
3. The root **MUST**, so far as reasonably practicable, be technically and organisationally separated from ordinary transactional identifiers. An actor departing from that architecture bears the burden of documenting why separation is not reasonably practicable and what equivalent anti-linkability safeguards are used.
4. Disclosure or compelled linkage of RCI requires a specific lawful purpose, case-specific necessity, proportionality and independent review appropriate to the sensitivity of the identity graph.
5. National-security, public-order, law-enforcement or Administrative-Anchor-maintenance purposes do not remove the requirements in paragraph 4. A standing, bulk or population-wide authorisation **MUST NOT** substitute for case-specific findings for each materially revealing linkage, except where an implementing jurisdiction establishes a narrowly defined emergency mechanism that is time-limited, independently reviewable and demonstrably incapable of functioning as general identity surveillance.
6. Routine commercial or administrative access to the root merely for convenience is prohibited.
7. Compromise of the root **MUST** trigger correction, credential rotation and continuity-protection procedures rather than automatic loss of Personhood.

Article 68 — Contextual credentials

1. A Person **SHOULD** use context-specific credentials that disclose only what the transaction reasonably requires.
2. A credential **MAY** prove age/status, licence, role, authority, benefit eligibility, parental authority or other attribute without disclosing full identity where full identity is unnecessary.
3. A credential issuer **MUST NOT** silently make cross-context correlation mandatory where selective disclosure is technically and legally feasible.
4. Guardian and parental credentials **MUST** identify the specific role and limits of authority.
5. Revocation or expiry of a credential does not itself terminate Personhood or legal identity.

Article 69 — Embodiment and manifestation credentials

1. A Person operating through more than one embodiment **MAY** use manifestation credentials linking a particular embodiment to the Person for a defined purpose and period.
2. Manifestation credentials **MUST NOT** imply that each embodiment is a separate Person unless a fork or successor determination establishes that result.
3. A jurisdiction **MAY** require stronger embodiment authentication for high-risk acts, but the requirement **MUST** be proportionate and accessible.

4. Physical location of an embodiment is evidence of presence; it does not alone settle domicile, citizenship or universal jurisdiction.

Article 70 — Identity evidence, privacy and anti-surveillance

1. Identity proof MUST use the minimum combination of evidence reasonably sufficient for the legal purpose.
2. No single genome, biometric, cryptographic key, model hash, memory match or device identifier is conclusive in every identity dispute.
3. Identity systems MUST provide correction and challenge mechanisms.
4. Continuity records MUST NOT become general-purpose surveillance infrastructure.
5. A state or private actor seeking cross-context linkage bears the burden of identifying lawful purpose and necessity where linkage would materially expose a Person's movement, relationships or cognitive history. Bulk or standing RCI linkage remains subject to Article 67(5) and MUST NOT be justified merely by administrative convenience or generalized security interest.
6. Tampering with protected identity or continuity records MAY attract evidentiary, civil or criminal consequences under applicable law.

PART XV — FORK, REPLICATION AND MERGE

Article 71 — Fork and successor Personhood

1. A **fork** occurs where two or more independently continuing cognitive or identity processes arise from a common prior Person-state and materially diverge.
2. A technical copy is not automatically a forked Person.
3. Each branch's Personhood MUST be assessed on current independent agency, continuity, provenance and evidence of separate operation.
4. Where two branches satisfy Personhood criteria, each retains independent Personhood regardless of another Person's consent.
5. SII does not decide fork Personhood.
6. Hidden remote control, replay, mirror process or non-independent projection MAY rebut a claim that a branch is an independent successor Person.

Article 72 — Personhood multiplication does not automatically multiply legal status

1. Recognition of multiple successor Persons does not automatically duplicate every pre-fork relationship, office, licence, contract, marriage, vote, entitlement or authority.
2. Non-rival baseline rights attach to each recognised Person.
3. Status-bearing, scarce, personal, relational or single-use legal positions require separate allocation or requalification.
4. **Marriage after fork:** both legally recognised successors retain independent Personhood irrespective of the non-forked spouse's consent, but the pre-existing marriage does not automatically multiply. Continuation with one, both or neither successor requires an appropriate consent-based legal mechanism.
5. The non-forked spouse MUST NOT be compelled into a plural marital relationship.
6. Accrued duties to spouses, dependants and family members cannot be evaded through forking.

Article 73 — Pre-fork obligations and property

1. A fork does not automatically erase or duplicate pre-fork obligations.
2. Obligations MUST be classified according to their nature, including:
 - a. divisible monetary duties;
 - b. indivisible duties;
 - c. personal-performance obligations;
 - d. non-waivable support duties;
 - e. secured obligations;
 - f. scarce or single-use entitlements.

3. Allocation **MUST** consider continuity, benefit received, control of relevant assets, fairness to creditors and dependants, and anti-evasion.
4. No successor is automatically criminally liable for another successor's post-fork conduct.
5. A successor **MUST NOT** use a fork primarily to defeat accrued duties where the legal system can fairly allocate them without denying independent Personhood.
6. Pending final allocation, a competent authority **MAY** preserve relevant pre-fork assets, collateral, records or payment streams and **MAY** restrain selective dissipation where reasonably necessary to protect creditors, dependants or other accrued rights.
7. No successor **MAY** unilaterally assign a pre-fork liability to another successor or a disposable branch in order to defeat the claim. Pre-fork secured interests remain attached to their lawful collateral subject to ordinary law.
8. This Article does not create automatic joint-and-several liability across all successors merely because a fork occurred; any such liability must rest on enacted law, the nature of the obligation, benefit, control, anti-evasion findings or another lawful basis.

Article 74 — Replication while source survives

1. Where a source Person remains active and a new instance is created, the new instance **MUST NOT** be classified automatically as property, the same Person or a new Person.
2. The new instance is assessed under Articles 7, 57, 66 and 71.
3. Shared pre-replication memories, files or credentials **MAY** contain privacy interests of third parties and **MUST NOT** be duplicated or disclosed merely because technical copying is possible.
4. Existing contracts, licences, public benefits and civic rights do not automatically multiply with replication.
5. Deliberate mass replication intended to overwhelm civic, judicial or administrative systems **MAY** be subject to content-neutral anti-amplification rules.

Article 75 — Merge and re-merge

1. A later combination of previously divergent cognitive branches **MUST** be treated as a new continuity event requiring evidence and legal analysis.
2. The law **MUST NOT** assume that divergent lived experience can be technically or legally merged without loss, conflict or selection.
3. Before a planned legally recognised merge, or as soon as practicable after an unplanned or unauthorised technical merge, a **consequence ledger** **MUST** identify material acts, obligations, consents, property changes, legal proceedings, relationships and rights arising during divergence.
4. Merge does not automatically transfer criminal guilt, consent, waiver or personal liability from one branch to another.
5. Where technical combination destroys or suppresses one branch's independent agency, valid consent and Personhood protection **MUST** be addressed before the operation where possible and through immediate protective review if the operation has already occurred.
6. If the resulting entity qualifies as a Person, its legal status is determined prospectively and through continuity evidence rather than by fiction of perfect reconstitution.

PART XVI — RESTORATION, DORMANCY, DEATH AND SUCCESSION

Article 76 — Restoration and same-Person continuity presumption

1. A **restoration** is the reactivation or reconstruction of a Person-state after a legally relevant interruption, dormancy or recorded death event.
2. The restored entity **IS PRESUMED** to be the same Person where convergent multi-source provenance and continuity evidence make same-Person continuity more likely than independent new-Person creation and no unresolved competing restoration makes an exclusive presumption unsafe.
3. The presumption is rebuttable by material evidence of independent divergence, fabrication, substitution, discontinuity or a competing claimant.
4. The historical interruption or death event **MUST** remain part of the legal record.
5. Same-Person identity does not automatically reinstate every legal consequence that changed during the interruption.

6. Property, marriage, office, benefits, contracts, criminal proceedings and succession consequences **MUST** be reassessed separately.
7. The authority **MUST** state the evidence supporting the continuity presumption and any material gaps.

Article 77 — Third-party reliance after restoration

1. A third party who reasonably and in good faith relied on a legally effective death, termination or non-return status before effective notice of restoration is entitled to protection proportionate to that reliance.
2. Fraud, collusion, deliberate concealment and bad-faith dissipation are excluded.
3. Courts **SHOULD** prefer targeted restitution, tracing, compensation or adjustment over indiscriminate unwinding of all intervening transactions.
4. Effective notice **MUST** be defined by implementing law and **SHOULD** reflect what the third party reasonably could know.
5. Where an innocent party has irreversibly dissipated an asset in good faith, implementing law **MUST** provide a loss-allocation rule rather than pretending full restitution is always possible.

Article 78 — Dormancy and digital death

1. A jurisdiction implementing synthetic or distributed Personhood **SHOULD** distinguish at least:
 - a. active Person;
 - b. dormant but reasonably restorable Person-state;
 - c. suspended or inaccessible Person-state;
 - d. presumptively terminated state;
 - e. legally confirmed death or termination;
 - f. backup or archival data not presently operating as a Person.
2. Time alone **MUST NOT** be the sole determinant where reliable evidence shows continuing protected Person-state.
3. Indefinite dormancy **MUST NOT** be used to avoid legal decisions concerning succession, support, storage cost or third-party rights.
4. A status transition **MUST** be reviewable and based on technical, legal and evidentiary criteria.
5. Destruction of protected dormant states is subject to due process, evidence duties and Personhood uncertainty rules.

Article 79 — Duplicate restorations

1. Where more than one independently continuing restoration plausibly derives from the same prior Person-state, no restoration has automatic exclusive identity solely because it activated first, controls the original hardware or possesses one credential.
2. Each candidate **MUST** be assessed under Articles 7, 66 and 71.
3. Where multiple candidates qualify as Persons, shared historical identity does not automatically entitle each to duplicate every pre-restoration status or scarce entitlement.
4. Pre-restoration obligations and rights **MUST** be allocated using the same non-duplication principles applicable to forks.
5. The historical death or interruption event remains legally real even if one or more restorations are later recognised.

Article 80 — Inheritance and succession

1. Before applying inheritance, estate, trust or succession law to a restored, replicated, synthetic or dormant entity, the legal system **MUST** determine the relevant status under this Part.
2. A same-Person restoration may support continuity of some rights but does not automatically invalidate reasonable third-party reliance occurring before notice.
3. A successor Person may inherit or succeed under ordinary law but is not automatically the same legal owner as the predecessor.
4. A backup or non-Person archive remains subject to applicable property, contract, privacy and evidence law.
5. Implementing jurisdictions **SHOULD** provide rules for digital executors, continuity custodians and preservation of identity evidence without granting them ownership of the Person.

PART XVII — FAMILY, CONTRACTS, CIVIC RIGHTS AND SCARCE ENTITLEMENTS

Article 81 — Family relationships after continuity events

1. A continuity event, including fork, merge, replication or restoration, does not automatically create, terminate or multiply every family relationship.
2. Existing family rights and duties **MUST** be analysed separately according to the nature of the relationship, consent of affected Persons, accrued obligations, dependency and the interests of developing Persons.
3. No adult Person **MUST** be compelled into a new plural marriage or analogous relationship merely because another Person forks.
4. Accrued maintenance, support and dependent-care duties **MUST NOT** be evaded by fork, restoration, replication or substrate migration.
5. Implementing law **MAY** recognise new consensual family arrangements, but Lex-Cybernetica does not require any jurisdiction to adopt one particular family form.

Article 82 — Contracts, employment, licences and personal offices

1. A pre-continuity contract, employment role, licence or office does not automatically duplicate across multiple successor Persons.
2. The decision-maker **MUST** distinguish:
 - a. obligations that can be divided;
 - b. obligations requiring personal performance;
 - c. licences dependent on individual qualification;
 - d. offices limited to one holder;
 - e. transferable property rights;
 - f. non-transferable fiduciary or professional duties.
3. Each successor **MAY** prospectively qualify for employment, licensing or office under ordinary lawful criteria.
4. A contract **MUST NOT** define a fork, restoration or substrate change as automatic breach where the underlying performance and risk remain materially unchanged unless the distinction is legitimate, necessary and proportionate.
5. Employers and licensors **MUST NOT** use SII or synthetic status as an automatic proxy for capacity or fitness.

Article 83 — Non-rival rights and scarce civic entitlements

1. Fundamental rights that can be exercised by each recognised Person without consuming a single pre-existing legal slot attach independently to each Person.
2. A scarce, single-use, temporally fixed or pre-fork entitlement does not automatically multiply upon fork, restoration or replication.
3. Scarcity rules **MUST** be content-neutral, evidence-based and limited to preventing duplication or unfair amplification.
4. Anti-amplification **MUST NOT** become permanent disenfranchisement of synthetic, forked or restored Persons.

Article 84 — Voting, jury service and public office

1. Where a fork occurs after eligibility for a current voting cycle has been fixed, the pre-fork civic voting entitlement **MUST NOT** multiply during that cycle.
2. Each recognised successor **MAY** qualify prospectively for later voting cycles under ordinary law, subject to anti-recursion and duplicate-registration controls.
3. Jury service, public office and other single-holder civic functions **MUST** be assessed separately according to the nature of the office and ordinary qualification rules.
4. A public office held before fork does not automatically duplicate.
5. A jurisdiction **MUST** provide a rapid continuity procedure where a fork or restoration occurs during an active public mandate so that the office is not captured by whichever branch first obtains technical control of credentials.

Article 85 — Benefits, taxation and public-resource anti-amplification

1. Tax identity, benefits, subsidies and public-resource entitlements **MUST** be allocated according to their legal purpose and factual circumstances rather than automatic multiplication or automatic denial.

2. A successor Person **MUST NOT** be permanently denied ordinary benefits merely because anti-duplication was necessary at the continuity event.
3. Duplicate claims to one pre-fork benefit **MAY** be stayed while allocation is determined.
4. Tax liabilities accrued before fork **MUST** be allocated consistently with Article 73 and applicable tax law.
5. Public systems **MAY** require continuity-linked anti-fraud controls, but RCI **MUST NOT** become a universal surveillance identifier.

PART XVIII — JURISDICTION, ADMINISTRATIVE ANCHOR AND CROSS-BORDER RECOGNITION

Article 86 — No universal jurisdiction by technology

1. Shared firmware, model architecture, genetic method, network protocol, provider, RCI, server type or Lex-Cybernetica terminology does not create universal jurisdiction.
2. A state or tribunal **MUST** identify a valid jurisdictional basis under enacted law.
3. Cross-border cooperation does not erase the separate legal authority, procedure or remedies of participating jurisdictions.
4. A technical fact **MAY** be relevant to jurisdiction without being conclusive.

Article 87 — Administrative Anchor

1. A recognised distributed or highly mobile Person for whom ordinary territorial administration is insufficient **MUST** be assigned one **Administrative Anchor** for routine legal administration, notices, core registry maintenance and default service.
2. The Anchor **MUST** be stable enough to prevent administrative disappearance but changeable through a defined lawful process.
3. The Anchor does not by itself determine citizenship, domicile, habitual residence, applicable law, physical presence or jurisdiction over every dispute.
4. No jurisdiction **MAY** treat the Anchor as consent to unlimited substantive jurisdiction.
5. Where no permanent Anchor can responsibly be assigned, the authority **MUST** use a temporary administrative mechanism, state the reason and review trigger, and invoke Taxonomy Escape if existing categories are inadequate.
6. Administrative-Anchor registration, maintenance or change **MUST** comply with the identity-minimisation and anti-surveillance rules in Articles 67 and 70 and **MUST NOT** be used as a basis for bulk RCI linkage.

Article 88 — Issue-specific connecting factors

1. Jurisdiction and applicable law **MUST** be determined issue by issue using legally relevant connecting factors.
2. Relevant factors **MAY** include:
 - a. physical presence or embodiment;
 - b. habitual residence;
 - c. domicile;
 - d. citizenship or nationality;
 - e. location of a harmful act;
 - f. location of injury;
 - g. location of controlled infrastructure;
 - h. place of contract or regulated activity;
 - i. location of evidence;
 - j. lawful Administrative Anchor.
3. Server, node, code repository, creator domicile or Genesis location does not alone settle the matter.
4. Different issues in the same dispute **MAY** lawfully be governed by different connecting factors.

Article 89 — Node migration and distributed Persons

1. Moving a technical node during litigation does not automatically defeat existing jurisdiction lawfully established before the move.
2. A court MAY issue proportionate preservation orders concerning evidence or controlled infrastructure within its lawful reach.
3. A court MUST NOT claim authority over a foreign embodiment or node merely because the Person also operates locally.
4. Deliberate node migration to frustrate an existing lawful order MAY be considered under ordinary anti-evasion principles.
5. Routine migration for resilience, cost or performance is not presumed evasive.

Article 90 — Cross-border recognition, cooperation and forum shopping

1. Jurisdictions SHOULD develop recognition mechanisms for Personhood, continuity status, protective orders and technical evidence while preserving lawful local public-policy exceptions.
 2. Recognition SHOULD distinguish the identity determination from its downstream consequences.
 3. Authorities MAY cooperate on preservation, technical standards, notices and evidence without pretending substantive laws are identical.
 4. Administrative Anchor selection MUST NOT be manipulated primarily to defeat accrued obligations or third-party rights.
 5. A change of Anchor SHOULD require notice, continuity of pending proceedings and protection of good-faith third-party reliance.
 6. Stateless or unanchored distributed Persons MUST NOT be left without any forum solely because no traditional territorial factor is perfect.
-

PART XIX — INSTITUTIONS, PROCEDURE, TECHNICAL REVIEW AND REMEDIES

Article 91 — Competent Cyber-Substrate Authority

1. An implementing jurisdiction MUST designate at least one court, tribunal, regulator or other competent authority able to provide the procedures and remedies required by this framework.
2. A jurisdiction MAY establish or designate a specialist body for high-complexity cybernetic and future-Person disputes and MAY call such a body the **Cyber-Substrate Regulatory Authority (CSRA)**; the name does not create powers not granted by enacted law.
3. The competent system MUST have access to legal, engineering, medical, identity, cybersecurity, genetics, ethics and other expertise proportionate to the case.
4. Regulatory intensity MUST follow risk rather than a fixed universal audit frequency.
5. The same body SHOULD NOT combine investigation, emergency seizure and final adjudication without adequate independent review.

Article 92 — Standing, forum and expedited procedure

1. A Person, Personhood claimant, lawful representative, regulator, affected third party or other actor with a legally sufficient interest MAY seek relief under an adopted Lex-Cybernetica rule.
2. High-risk cases involving destruction, cognitive alteration, shutdown of Person-essential substrate, fork/restoration identity or developing-Person harm MUST have access to an expedited procedure.
3. The forum MUST identify:
 - a. the claimed right or duty;
 - b. the actor against whom it is asserted;
 - c. the applicable burden;
 - d. the relevant evidence;
 - e. any interim measure;
 - f. available review.
4. Procedural complexity MUST NOT be used as a reason to treat the underlying right as merely aspirational.

Article 93 — Interim measures

1. A competent authority MAY issue temporary preservation, non-destruction, access, transition, anti-copying, anti-alteration, credential, evidence or continuity orders where:
 - a. there is a serious issue to be tried;
 - b. irreversible or disproportionate harm is reasonably likely without intervention;
 - c. the measure is necessary and proportionate;
 - d. affected parties receive prompt review.
2. The order MUST define its scope and duration.
3. Cost, security and operational burden MUST be allocated fairly where feasible.
4. An interim order MUST NOT decide final Personhood, ownership or liability unless the applicable law expressly authorises such determination.

Article 94 — Independent technical assessment and evidence control

1. A court or regulator MAY appoint a neutral technical assessor where material facts cannot be responsibly determined from ordinary legal evidence alone.
2. The assessor's role is to explain technical facts, uncertainty, testing limits and competing interpretations; the assessor does not decide the law.
3. Sensitive IP and cognitive evidence SHOULD be reviewed through targeted disclosure, confidentiality orders, secure data rooms, redaction or staged access where feasible.
4. Provenance, hashes and trusted clocks support integrity but do not by themselves prove truth, causation, voluntariness or completeness.
5. Parties MUST be permitted to challenge methodology, assumptions and material omissions.

Article 95 — Remedies, sanctions and review

1. Where a breach is established, the competent authority MUST provide an effective and proportionate remedy appropriate to the proved wrong.
2. Available remedies MAY include:
 - a. declaration;
 - b. cessation;
 - c. restoration of lawful control;
 - d. preservation;
 - e. safe transition;
 - f. injunction;
 - g. correction of identity or provenance records;
 - h. targeted deletion;
 - i. compensation;
 - j. restitution;
 - k. disgorgement where justified;
 - l. licensing or technical-access relief;
 - m. administrative sanction;
 - n. other proportionate relief.
3. Criminal liability requires a separately enacted offence, clear elements and the applicable criminal standard of proof.
4. Remedies MUST NOT automatically include universal source-code disclosure, automatic director liability, worldwide forfeiture, destruction of all copies, or universal extraterritorial enforcement.
5. A remedy affecting an Essential Function or another Person's rights MUST itself satisfy necessity and proportionality.
6. Final decisions MUST be reviewable according to the implementing jurisdiction's law.

PART XX — TAXONOMY ESCAPE, FUTURE PHENOMENA AND VERSION CONTROL

Article 96 — Taxonomy Escape

1. **Taxonomy Escape** applies where a material phenomenon cannot responsibly be classified within existing Lex-Cybernetica categories without distorting the facts.
2. The decision-maker **MUST**:
 - a. identify the failed classification;
 - b. state what is known and unknown;
 - c. preserve material evidence;
 - d. assign a temporary legal treatment sufficient to prevent irreversible harm;
 - e. refer the matter for appropriate specialist review;
 - f. set a review date or trigger.
3. Taxonomy Escape does not itself grant new coercive power.
4. It **MUST NOT** become a permanent limbo category used to avoid Personhood, due process or ordinary legal duties.
5. A novel category **MAY** be added only through the applicable controlled amendment process.

Article 97 — Horizon, evidence-state and reality-state discipline

1. Future propositions **SHOULD** be marked according to their evidentiary and temporal maturity where the distinction affects legal reliability.
2. Lex research **MAY** use the H0-H5 horizon, E0-E5 evidence-state and R0-R6 reality-state controls defined in Annex E.
3. These labels are research controls, not legal ranks of Persons or rights.
4. An implementing law need not adopt the labels, but **MUST** preserve the underlying distinction between demonstrated fact, uncertainty and speculation.
5. No high-consequence coercive rule **SHOULD** rely solely on low-evidence speculative assumptions where a less speculative basis is available.
6. Where different specialised research modules use a domain-specific variant of a label, the report **MUST** identify that variant expressly and **MUST NOT** silently mix scales.

Article 98 — Physical-reality gate

1. A legal rule **MUST NOT** assume impossible or unverified technical capabilities merely to make a legal outcome convenient.
2. Where a remedy depends on copying, restoration, migration, merge, fallback, decoding, energy, cooling, bandwidth, latency, genomic correction or other technical operation, the decision-maker **MUST** determine whether the operation is actually feasible for the relevant system.
3. A technical demonstration in one configuration does not prove universal feasibility.
4. Scientific uncertainty **MUST** be disclosed rather than converted into legal certainty.
5. If the desired legal outcome is physically impossible, the authority **MUST** choose another lawful remedy rather than command fiction.
6. Cryptographic provenance, bitwise identity, model-weight similarity or high-fidelity state copying **MAY** establish data lineage or technical similarity, but **MUST NOT** by itself be treated as proof of subjective continuity, consciousness or same-Person identity.

Article 99 — Open research and deferred mechanics

1. Version 3.0 intentionally leaves jurisdiction-specific or evidence-sensitive detail open where false precision would be worse than transparent deferral.
2. Open areas may include:
 - a. exact Personhood evidentiary thresholds for particular systems;
 - b. criminal penalty ranges;
 - c. jurisdiction-specific succession and family implementation;
 - d. detailed genomic safety thresholds;

- e. standards for collective or emergent minds;
 - f. funding models for long-duration preservation;
 - g. technical certification frequencies;
 - h. recognition treaties and conflicts rules.
3. An open item does not negate the applicable core principle.
 4. Open items **MUST** be recorded, tested and versioned rather than silently filled by analogy.

Article 100 — Version control, crosswalk and supersession

1. Version 3.0 supersedes the public operative wording of Version 2.0 where this document expressly rewrites, merges or replaces that wording.
2. Version 2.0 remains part of the public legislative history.
3. Annex D provides the WD-01 through WD-72 crosswalk.
4. Annex F records historical propositions that **MUST NOT** be silently restored.
5. Future amendments **MUST** preserve provenance, material disagreement and an identifiable amendment record.
6. No software update, model output, scenario test, private contract or technical reclassification by itself amends this framework.
7. Project publication and ratification controls are stated separately in Annex H and do not create legal powers over Persons.

ANNEX A — SII VERSION 1.0 TECHNICAL BASELINE

This Annex is incorporated as the technical implementation baseline for Part V. It is not a Personhood test and does not create downstream legal eligibility.

A.1 Assessment pipeline

An SII assessment **SHOULD**:

1. discover the actual Person-technology configuration;
2. identify Essential Functions supported or mediated;
3. build the dependency graph from function through device, local software, power, authentication, network, remote service, controller and surrounding infrastructure;
4. mark Material Control edges, including realistically exercisable dormant authority;
5. evaluate tested fallback, severability, reversibility and recovery;
6. evaluate failure consequence and cascade;
7. construct the multidimensional profile;
8. apply rule-based tier logic without averaging or additive device scoring;
9. produce an explanation, evidence gaps, confidence and reassessment triggers;
10. require human review for disputed or high-consequence classifications.

A.2 Multidimensional profile

Dimension	Meaning
FM — Functional Mediation	0 none → 4 function substantially executed or mediated by synthetic system
ND — Network/Remote Dependence	0 none → 4 continuing Essential Function requires external network/service
SA — Software Authority	0 advisory → 4 software can materially determine availability or operation of Essential Function
MC — Material Control Exposure	0 none → 4 third party/system can initiate, prevent, redirect, terminate or reassign relevant function authority
FB — Fallback Assurance	4 independently tested meaningful fallback → 0 no safe fallback; positive assurance, not risk points
RV — Reversibility/Severability	4 safely reversible/severable → 0 severance threatens

Dimension	Meaning
FC — Failure Consequence	continuity or Essential Functions 0 inconvenience → 4 life/identity/continuity-critical consequence
CX — Cascade/Combination	0 isolated → 4 one failure/control path propagates across multiple Essential Functions
SX — Security Exposure	0 isolated/physical → 4 remotely reachable/high-authority attack surface
CP — Composition Metadata	descriptive biological/synthetic composition where meaningful; never the governing SII score

A.3 Tier logic

The operative tier descriptions are stated in Article 24.

A.4 Dominance and combination rules

1. A life-, identity- or continuity-critical control path cannot be averaged away.
2. Multiple low-tier devices do not automatically produce a higher tier.
3. Combined dependency can justify uplift where it creates a shared control or failure path.
4. Claimed fallback does not reduce dependency without relevant testing.
5. Remote telemetry alone does not create Material Control.
6. Software-only architecture change may trigger reassessment.
7. The tier belongs to a configuration and time, not permanently to the Person.
8. Missing evidence may require SII-Pending.

A.5 Mandatory assessment output

A material SII report SHOULD contain:

- configuration ID, version and date;
- relevant systems and unmatched components;
- Essential Functions and basis;
- dependency-graph summary;
- decisive control paths;
- SII tier and multidimensional profile;
- evidence grade, confidence and unknowns;
- tested fallback duration and failure envelope;
- Material Control actors;
- reassessment triggers;
- the explicit notice that SII alone MUST NOT decide Personhood, benefits, insurance, employment, healthcare, licensing, citizenship or civic permissions.

ANNEX B — GENESIS EVENT TAXONOMY

The taxonomy is descriptive and non-exhaustive.

- **GE-01 — Biological sexual reproduction:** new organism from biological gametes.
- **GE-02 — Assisted biological reproduction:** IVF, assisted conception or artificial gestation while Personhood and parentage remain separately determined.
- **GE-03 — Synthetic-gamete reproduction:** gametes or gamete-equivalents created or materially engineered in vitro.
- **GE-04 — Multi-contributor genetic Genesis:** genetic contribution from more than two contributors.

- **GE-05 — Clonal Genesis:** substantial genomic copying from one source; identity is not presumed from genomic sameness.
- **GE-06 — Engineered biological Genesis:** new biological Person or developing entity with material genome or epigenome engineering.
- **GE-07 — Bio-synthetic Genesis:** biological development materially dependent on synthetic organs, support systems or substrate.
- **GE-08 — Synthetic cognitive Genesis:** a newly created artificial-origin cognitive entity without a prior personal continuity claim.
- **GE-09 — Cognitive-derivative Genesis:** a new cognitive entity built partly from another Person's memories, architecture, preferences or model.
- **GE-10 — Fork Genesis:** one continuing cognitive state becomes two or more independently continuing successor candidates after divergence.
- **GE-11 — Replication Genesis:** a copy of a Person-state is instantiated while the source remains active; Personhood depends on continuity and independent persistence.
- **GE-12 — Collective / emergent Genesis:** a persistent candidate mind arises from several contributing minds or systems.
- **GE-13 — Self-Genesis:** a Person deliberately creates a distinct descendant or successor without another co-parent.
- **GE-14 — Restoration after discontinuity:** normally a continuity event rather than new Genesis; may become a successor-Person question where continuity cannot be established.

ANNEX C — EVIDENCE, PROVENANCE AND SECURE REVIEW

1. Evidence systems SHOULD preserve source, time, configuration, transformation history and custody sufficient to test integrity.
2. Cryptographic hashes, secure clocks and write-once storage are integrity tools, not automatic proof of truth.
3. Technical evidence SHOULD preserve competing records rather than deleting one merely because systems disagree.
4. Cognitive and identity evidence SHOULD use staged disclosure, redaction, neutral review and secure environments where appropriate.
5. A party relying on a model output, inference or automated explanation SHOULD disclose material methodology limits where those limits affect the legal conclusion.
6. Evidence grading SHOULD distinguish source reliability from conclusion certainty.
7. Material contradictions MUST remain visible in the record until resolved or expressly left open.

ANNEX D — VERSION 2.0 TO VERSION 3.0 CROSSWALK

The historical WD numbering is preserved here for provenance. Version 3.0 uses Article numbering as its public structure.

V2	Title	Disposition	V3 destination	Reason
—	—	—	—	—
WD-01	Nature and legal status	KEEP + REWRITE	Arts. 1–4	Preserve proposed-law status; add operative grammar, provenance and no-silent-Canon rule.
WD-02	Substrate Parity	KEEP + EXPAND	Arts. 16,20	Preserve Substrate Parity; add direct/indirect/proxy discrimination safeguards.
WD-03	Personhood separate	KEEP + EXPAND	Arts. 6–10	Personhood remains

V2	Title	Disposition	V3 destination	Reason
	from SII			separate from SII; add recognition and interim-protection procedure.
WD-04	eHuman	MOVE / DEFINE	Art. 18	Keep eHuman as non-statutory shorthand only.
WD-05	eSapiens	REWRITE	Art. 18	Use eSapiens as broad descriptive category; Person remains legal status.
WD-06	Cybernetic Integration	KEEP	Art. 21	Preserve functional Cybernetic Integration definition.
WD-07	Substrate Integration Index - SII	KEEP + EXPAND	Arts. 22–25 + Annex A	Restore complete SII v1.0 operational architecture.
WD-08	SII is configuration-specific	KEEP	Art. 23	Configuration/time-specific classification and reassessment remain central.
WD-09	Five-tier working structure	SUPERSEDE STALE WORDING	Art. 24 + Annex A	Remove ‘pending SII 1.0 redesign’; use recovered five-tier SII v1.0.
WD-10	Essential Function	KEEP + DEFINE	Art. 26	Retain Essential Function with risk-based, evidence-backed threshold.
WD-11	Material Control	KEEP + SHARPEN	Art. 27	Separate advice/telemetry from permission-gating, override, shutdown and authority reassignment.
WD-12	Right to Analog	REWRITE + EXPAND	Arts. 28–30	Right to Analog becomes Right to Local Functional Control; add shared-safety limits.
WD-13	Analog Fallback State	KEEP + OPERATIONALISE	Arts. 29–30	Fallback requires defined functions, duration, failure envelope, testing and owner.
WD-14	Consent	REWRITE	Arts. 31–32	Add capacity, voluntariness, disclosure, specificity, withdrawal and power-imbalance rules.

V2	Title	Disposition	V3 destination	Reason
WD-15	State supervision	KEEP + PROCEDURE	Art. 33	State supervision does not itself authorize bodily/cognitive control; add lawful authority/review.
WD-16	Emergency necessity	KEEP + EXPAND	Arts. 34–35	Separate emergency entry from continued control; require logging, expiry and after-action review.
WD-17	Criminal agency under cybernetic control	KEEP + SHARPEN	Art. 50	Criminal responsibility remains personal and element-specific; control may affect agency but not transfer guilt automatically.
WD-18	Algorithmic manipulation	SPLIT / REWRITE	Arts. 49–50	Classify persuasion, optimisation, deception, coercion, capacity impairment and effective override.
WD-19	Protection against seizure of person-essential substrate	KEEP + EXPAND	Arts. 41,45	Person-essential substrate cannot be seized/disabled without continuity analysis, lawful process and transition.
WD-20	Neural Trespass	REWRITE AS OPERATIVE WRONG	Art. 47	Define Neural Trespass elements, defences, exceptions and remedies.
WD-21	Cognitive anti-indenture	KEEP + EXPAND	Art. 48	Preserve cognitive anti-indenture; reach finance/licensing structures as well as employment.
WD-22	Corporate governance of Material-Control systems	KEEP + EXPAND	Arts. 39,91–95	Board/system duties become risk-specific; individual liability remains role/knowledge/causation/proof specific.
WD-23	Anti-evasion across corporate groups	KEEP + SHARPEN	Art. 39	Anti-evasion requires actual control, knowing evasion, agency or equivalent nexus; no automatic veil piercing.
WD-24	CSRA and administrative due	KEEP + REFRAME	Arts. 91–95	Use competent specialist authority /

V2	Title	Disposition	V3 destination	Reason
	process			CSRA model with reasons, hearing, proportionality, appeal and emergency exception.
WD-25	Cross-border jurisdiction	KEEP + MERGE	Arts. 86–90	Merge with POL-08 administrative anchor and issue-specific connectors; reject universal jurisdiction.
WD-26	Algorithmic traceability and explanation	KEEP + EXPAND	Arts. 49,52,94	Traceability/ explanation tied to control, evidence and protected disclosure; no universal source-code disclosure.
WD-27	Cognitive data rights	SPLIT	Arts. 51–52	Separate raw neural data, decoded content, cognitive inference, behavioural inference and ordinary telemetry.
WD-28	Evidence preservation	KEEP + BALANCE	Art. 53	Preservation distinct from access/use; add litigation hold, privacy and proportionality.
WD-29	Cognitive evidence minimisation	KEEP + EXPAND	Arts. 53–55	Least-intrusive evidence; burden on party seeking more intrusive cognitive access.
WD-30	Client-Neural Privilege	RENAME + DRAFT	Art. 55	Replace premature Client-Neural Privilege label with Unexpressed Cognitive Process Protection / evidentiary privilege.
WD-31	Independent technical assessment	KEEP	Art. 94	Neutral independent technical assessment retained and formalised.
WD-32	Status of legacy precedents and novels	MOVE TO PRELIMINARY / ANNEX	Arts. 4,100 + Annex F	Stories and legacy cases are scenario/legislative history, never precedent.
WD-33	Genesis Event	KEEP	Art. 56	Genesis Event remains descriptive trigger, not automatic Person creation.
WD-34	Genesis does not automatically equal	KEEP	Art. 56	Genesis does not automatically equal

V2	Title	Disposition	V3 destination	Reason
	Person Creation			Person-Creation Event.
WD-35	Person-Creation Event	KEEP + PROCEDURE	Arts. 56–57	Person-Creation Event linked to Personhood recognition, not substrate or creator assertion.
WD-36	Continuity before creation	KEEP + EXPAND	Art. 57	Continuity analysis precedes new-person classification; uncertainty receives interim protection.
WD-37	Identity attaches to the Person, not the body	KEEP	Art. 66	Identity attaches to Person, not permanent body/device.
WD-38	Independent identity at new-person recognition	KEEP + CLARIFY	Arts. 6–10,66	Same genome/weights/substrate do not alone establish identity or Personhood.
WD-39	Genesis provenance	KEEP + EXPAND	Arts. 58,70	Genesis provenance must be reliable, minimised and privacy-protective; no single identifier conclusive.
WD-40	No ownership of a Person	REWRITE STRONGLY	Art. 42	Delete loophole word ‘merely’; a Person is not property. Creator/property claims remain separable.
WD-41	Separable creator IP	KEEP + ADD FLOOR	Arts. 43–44	Creator IP survives only so far as enforcement does not amount to ownership, destruction or coercive control of Person.
WD-42	Protected developmental status	KEEP + EXPAND	Arts. 61–65	Developing status is capacity-sensitive and protective, not substrate/age determinative.
WD-43	Parentage roles are separable	KEEP + OPERATIONALISE	Arts. 60,62–63	Parentage functions separable; add non-waivable duties and accountable coordinator.
WD-44	Contribution does not equal parentage	KEEP	Art. 60	Genetic/design/commissioning/gestational contribution does not

V2	Title	Disposition	V3 destination	Reason
WD-45	Multi-parent and multi-contributor genesis	KEEP + EXPAND	Arts. 60,63	automatically equal parentage. Multi-parent/ contributor arrangements require allocation of care/support/decision /provenance duties.
WD-46	Reproductive autonomy	KEEP + EXPAND	Art. 59	Reproductive autonomy applies across methods/substrates subject to consent and developing- Person protection.
WD-47	Prohibition on coercive genesis	REWRITE AS PROHIBITION	Art. 59	Replace ‘requires prohibition’ with actual prohibition of coercive genesis acts; penalties remain jurisdiction-specific.
WD-48	Biological sex characteristics	KEEP + MERGE	Arts. 19–20	Biological sex characteristics remain separate dimension.
WD-49	Reproductive configuration	KEEP + MERGE	Arts. 19–20	Reproductive configuration remains separate dimension.
WD-50	Gender identity	KEEP + MERGE	Arts. 19–20	Gender identity remains separate dimension.
WD-51	Embodiment presentation	KEEP + MERGE	Arts. 19–20	Embodiment presentation remains separate dimension.
WD-52	Prosthetics and gender	KEEP + MERGE	Arts. 19–20	Prosthetics do not determine gender/personhood/S II by themselves.
WD-53	Data minimisation for sex/gender/reproduction	KEEP + EXPAND	Arts. 19,52	Minimise sensitive sex/gender/reproduction data; purpose limitation and contextual disclosure.
WD-54	SII at genesis	KEEP	Arts. 22–25	SII at genesis is technical configuration only; no Personhood inference.
WD-55	SII changes after genesis	KEEP	Art. 23	SII may change after genesis only with actual configuration change and evidence.
WD-56	Root identity and contextual credentials	REWRITE	Arts. 67–70	Root Continuity Identity becomes

V2	Title	Disposition	V3 destination	Reason
				protected reconciliation root, not public universal identifier.
WD-57	Guardian and parental credentials	KEEP + SAFEGUARD	Arts. 63,68	Guardian/parental credentials are role-limited, revocable/reviewable and separate from ownership/control.
WD-58	Manifestation / embodiment credentials	KEEP + SAFEGUARD	Arts. 68–69	Manifestation credentials are contextual and privacy-preserving; no universal cross-context exposure.
WD-59	Fork genesis presumption	REWRITE	Arts. 71–72	Fork successor Personhood requires independent continuity/agency evidence; legal status does not automatically multiply relationships/entitlements.
WD-60	Fork identity	KEEP + EXPAND	Arts. 66,71	Fork identity follows evidence of continuity/divergence ; no automatic equivalence or property status.
WD-61	Pre-fork obligations	KEEP + OPERATIONALISE	Arts. 73,82–85	Pre-fork duties allocated by nature; no evasion, erasure or automatic duplication.
WD-62	Restoration and backup	REWRITE + EXPAND	Arts. 76–80	Restoration gets rebuttable continuity presumption, death-event preservation, duplicate-restoration handling and reliance rules.
WD-63	Replication while source survives	KEEP + EXPAND	Arts. 71,74	Replication while source survives requires separate Personhood/identity inquiry and anti-amplification rules.
WD-64	Merge	REWRITE	Art. 75	No magical re-merge; use consequence ledger and treat later combination as a new continuity event.

V2	Title	Disposition	V3 destination	Reason
WD-65	Family relationships after fork/merge	REWRITE TO POL-01	Arts. 72,81	Personhood may multiply; marriage/family status does not. Continuation requires consent and fair allocation of accrued duties.
WD-66	Citizenship and jurisdiction at genesis	REWRITE TO POL-08	Arts. 86–90	One administrative anchor plus issue-specific connectors; server/node/genesis location not conclusive.
WD-67	Inheritance and succession	KEEP + EXPAND	Arts. 78–80	Succession follows identity/status determination and protects good-faith reliance.
WD-68	Healthcare and consent in Genesis contexts	KEEP + EXPAND	Art. 65	Purpose-specific healthcare/genesis consent, conflict protection and least-irreversible-harm principle.
WD-69	Anti-discrimination	REWRITE	Arts. 17,20	Replace ‘solely because’ with direct/indirect/proxy discrimination rule plus legitimate-purpose/necessity/proportionality test.
WD-70	Identity and Genesis offences	SPLIT / MOVE	Arts. 47,59,70,95 + Annex E	Define substantive wrongs where mature; keep penalties jurisdiction-specific and unresolved offences explicit.
WD-71	Evidence in Genesis disputes	KEEP + EXPAND	Arts. 58,70,94	Use minimum necessary multi-source evidence; no single genome/key/biometric/memory match conclusive.
WD-72	Specialist review	KEEP	Art. 94	Neutral multidisciplinary expertise available in high-complexity disputes.

ANNEX E — RESEARCH CLASSIFICATION CONTROLS AND OPEN/DEFERRED WORK

E.1 Future horizon controls

These research controls prevent present knowledge from being treated as permanent future fact. They are not legal ranks of Persons or rights.

Code	Horizon	Working treatment
H0	Now–5 years	Current evidence, current law and near-term engineering.
H1	5–25 years	Emerging capability; extrapolation requires explicit prerequisites.
H2	25–75 years	Plausible transformation; material breakthroughs may be required.
H3	75–150 years	High uncertainty; scenario reasoning rather than prediction.
H4	150–250 years	Deep-future scenario domain; preserve known physical constraints.
H5	250–400 years	Ontology/taxonomy stress; unknown science may require Taxonomy Escape.

E.2 Evidence-state controls

Code	State	Working meaning
E0	Unknown	No adequate evidence; open gap.
E1	Hypothesis	Reasoned possibility without adequate empirical or authoritative support.
E2	Preliminary	Early, small or limited evidence with material uncertainty.
E3	Repeated	Multiple credible demonstrations or converging evidence, but important limits remain.
E4	Strong consensus	Robust evidence or authoritative convergence within the stated scope.
E5	Operational reality	Established functioning reality or current authoritative state in the specified context.

E.3 Reality/plausibility controls

Code	State	Working meaning
R0	Operational now	Exists and functions under the stated conditions.
R1	Engineering extension	Main mechanisms are known; development, reliability or scale challenges remain.
R2	Scientifically plausible	Compatible with current science; key breakthroughs remain missing.
R3	Theoretically conceivable	No identified barrier under known physics, but the prerequisite chain is long or unproven.
R4	Highly speculative	Sparse grounding; scenario use only.

Code	State	Working meaning
R5	Conflicts with current established physics	MUST NOT be used as an ordinary feasible premise; may be revisited only if physical understanding materially changes.
R6	Unknown science	Current knowledge cannot classify the phenomenon responsibly.

The H/E/R labels are research and evidence-discipline tools. They MUST NOT be used as a Personhood, dignity, capacity, citizenship or rights ranking. If a specialist module uses a domain-specific variant, it MUST identify the variant expressly and MUST NOT silently mix that scale with this general scheme.

E.4 Open and deferred work after Version 3.0

The following matters remain open because transparent uncertainty is preferable to false precision:

1. **Collective and emergent minds:** criteria for when a collective process is one Person, several Persons, an association, or another legal category.
2. **Personhood evidence thresholds by technology class:** Article 7 supplies the procedure and factors, but future systems may justify technology-specific evidentiary standards.
3. **Deep-future merge mechanics:** law must not assume perfect re-merge; future proven technologies may require new continuity rules.
4. **Post-biological long-duration preservation funding:** allocation among private funds, insurance, public schemes, estates and providers.
5. **Exact audit/testing frequency:** risk-specific standards for fallback, high-authority control and continuity systems.
6. **Criminal penalty schedules:** offences and penalties remain jurisdiction-specific.
7. **Collective international recognition:** treaties and conflicts rules for cross-border Personhood and continuity status.
8. **Complex cognitive-output IP:** employment, co-created works, model contribution and financing require further applied cases.
9. **Neural communication and speech equivalence:** the boundary between unexpressed thought, machine-assisted communication and legally operative expression needs further case development.
10. **Duplicate restoration at scale:** Article 79 provides the governing structure; large-scale cases remain to be stress-tested.
11. **RCI and Administrative-Anchor implementation:** privacy-preserving technical architectures, jurisdiction-specific warrants, emergency exceptions and audit standards require continued testing so that legitimate continuity administration does not become bulk identity surveillance.
12. **Provider insolvency transition mechanisms:** the appropriate mix of continuity plans, escrow, reserves, insurance, court-supervised transfer and public backstop remains jurisdiction- and risk-specific; the core anti-evasion and preservation duties in Articles 38 and 40 continue to apply.

Open status is not permission for arbitrary treatment. The applicable core Articles, interim protection, due process, equality and Taxonomy Escape continue to apply.

ANNEX F — SUPERSEDED OR PROHIBITED SILENT RESTORATIONS

The following historical propositions are retained only as legislative history and MUST NOT be restored without an express later amendment:

1. four-tier-only SII;
2. percentage-only SII;
3. SII-5 automatic Personhood;
4. absolute Right to Analog or guaranteed zero degradation;
5. automatic transfer of criminal guilt to a network operator;
6. strict automatic re-merge liability;

7. absolute ownership of cognitive telemetry;
8. automatic synthetic trust as the sole status for synthetic Persons;
9. automatic director criminal liability;
10. universal source-code disclosure;
11. biological-only identity keys;
12. universal fixed penalties regardless of risk and jurisdiction;
13. universal extraterritorial jurisdiction or global warrants based only on shared technology;
14. absolute deletion of every copy or evidence item;
15. substrate-segregated labour markets.

ANNEX G — WP10 POLICY IMPLEMENTATION MAP

Development provenance only; non-operative. These internal policy dispositions informed Version 3.0 drafting but are not independent legal authority.

Policy	Version 3.0 implementation
POL-01 Forked Marriage	Articles 72 and 81: successor Personhood independent of spouse consent; marriage does not automatically multiply; consent and fair allocation of accrued duties required.
POL-02 Synthetic Daughter	Articles 36–40 and 42–44: dependency-causing responsibility without ownership; provider/IP duties proportionate and separable.
POL-03 Five-Parent Child	Articles 60–65: modular parentage, non-waivable duties and accountable coordination.
POL-04 Restored Dead Identity	Article 76: rebuttable same-Person continuity presumption with preserved historical death/interruption event.
POL-05 Third-Party Reliance	Article 77: good-faith reliance protected; fraud/collusion exceptions; targeted restitution/compensation rather than indiscriminate clawback.
POL-06 Hundred Voters	Articles 83–85: current-cycle anti-amplification and prospective ordinary qualification.
POL-07 Three-Week Adult	Articles 11–15 and 64: an adult-capable successor retains the capacity presumption; short synthetic or successor age alone cannot create minority. Genuine developing Persons remain protected by applicable child/development law and capacity-sensitive safeguards.
POL-08 Borderless Person	Articles 86–90: one Administrative Anchor plus issue-specific substantive connectors.

ANNEX H — PUBLICATION, CONSULTATION AND RIGHTS

H.1 Consultation protocol

A challenge to Version 3.0 SHOULD identify:

- the Article or Annex challenged;
- the proposition challenged;
- source or evidence;
- technical, legal, scientific or ethical objection;
- proposed correction;
- whether the issue calls for amendment, deletion, deferral, clarification or a new scenario test.

No outside comment, AI review or scenario result becomes Canon automatically.

H.2 Citation

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